

STATE OF NEW YORK

8302--D

2025-2026 Regular Sessions

IN SENATE

May 30, 2025

Introduced by Sen. COMRIE -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law and the general business law, in relation to enacting the "prevention of damage to critical infrastructure act of 2026"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "prevention
2 of damage to critical infrastructure act of 2026".

3 § 2. Section 145.15 of the penal law, as amended by chapter 585 of the
4 laws of 2006, is amended to read as follows:

5 § 145.15 Criminal tampering in the second degree.

6 1. For purposes of this section, a "critical infrastructure provider"
7 shall mean a utility company as defined in subdivision twenty-three of
8 section two of the public service law, an electric plant as defined in
9 subdivision twelve of section two of the public service law, a cooper-
10 ative as such term is defined in section two of the rural electric coop-
11 erative law, a cable television company as defined in subdivision one of
12 section two hundred twelve of the public service law, an internet
13 service provider as defined in paragraph (g) of subdivision one of
14 section two hundred twenty-four-c of the public service law, a cellular
15 telephone company, any other person or entity providing voice or data
16 communications services to the public, regardless of its regulatory

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13225-09-6

status under state or federal law, or a public utility authority subject to the provisions of article five of the public authorities law.

2. A person is guilty of criminal tampering in the second degree when, having no right to do so nor any reasonable ground to believe that ~~[he]~~ such person has such right, ~~[he or she]~~ such person tampers with, damages or makes connection with property of a ~~[gas, electric, sewer, steam or water works corporation, telephone or telegraph corporation, common carrier, nuclear powered electric generating facility, or public utility operated by a municipality or district; except that in any prosecution under this section, it is an affirmative defense that the defendant did not engage in such conduct for a larcenous or otherwise unlawful or wrongful purpose]~~ critical infrastructure provider.

Criminal tampering in the second degree is a class A misdemeanor.

§ 3. Section 145.20 of the penal law, as amended by chapter 585 of the laws of 2006, is amended to read as follows:

§ 145.20 Criminal tampering in the first degree.

1. For purposes of this section, a "critical infrastructure provider" shall mean a utility company as defined in subdivision twenty-three of section two of the public service law, an electric plant as defined in subdivision twelve of section two of the public service law, a cooperative as such term is defined in section two of the rural electric cooperative law, a cable television company as defined in subdivision one of section two hundred twelve of the public service law, an internet service provider as defined in paragraph (g) of subdivision one of section two hundred twenty-four-c of the public service law, a cellular telephone company, any other person or entity providing voice or data communications services to the public, regardless of its regulatory status under state or federal law, or a public utility authority subject to the provisions of article five of the public authorities law.

2. A person is guilty of criminal tampering in the first degree when, with intent to cause a substantial interruption or impairment of a service rendered to the public, and having no right to do so nor any reasonable ground to believe that ~~[he or she]~~ such person has such right, ~~[he or she]~~ such person damages or tampers with property of a ~~[gas, electric, sewer, steam or water works corporation, telephone or telegraph corporation, common carrier, nuclear powered electric generating facility, or public utility operated by a municipality or district]~~ critical infrastructure provider, and thereby causes such substantial interruption or impairment of service.

Criminal tampering in the first degree is a class D felony.

§ 4. Section 62 of the general business law, as amended by chapter 302 of the laws of 2007, is amended to read as follows:

§ 62. Statement required from persons selling certain property. 1. On purchasing any pig or pigs of metal, bronze or brass castings or parts thereof, sprues or gates or parts thereof, copper wire, tubing or cable, or brass car journals, or metal beer kegs, such junk dealer shall:

(a) cause to be subscribed by the person from whom purchased a statement ~~[as to]~~ setting forth: (i) the date of the purchase, (ii) when, where and from whom [he or she] such person obtained such property or other proof of authorization to sell such items, [also his or her] (iii) such person's identity as verified by a government issued identification card, (iv) such person's age, residence address by city, village or town, and the street and number thereof, if any, (v) the driver's license number or similar information from another form of a government issued photographic identification card, if any, of such person, and ~~[otherwise such description as will reasonably locate the same, his or~~

1 ~~her]~~ (vi) such person's occupation and name of ~~[his or her]~~ such
2 person's employer and place of employment or business~~[, which statement~~
3 ~~the junk dealer shall]~~;

4 (b) forthwith file such statement in the office of the chief of police
5 of the city or village in which the purchase was made, if made in a city
6 or incorporated village, and otherwise in the office of the sheriff of
7 the county in which made~~[, The junk metal dealer shall also]~~; and

8 (c) make and retain a copy of the government issued photographic iden-
9 tification card used to verify the identity of the person from whom the
10 junk metal was purchased and shall retain this copy in a separate book
11 or register for two years from the date of purchase of the junk metal
12 and include an additional copy of this identification with the informa-
13 tion required to be transmitted to the chief of police or sheriff pursu-
14 ant to this section.

15 2. For the purposes of this section, "government issued identifica-
16 tion" means any current and valid official form of identification issued
17 by the government of the United States of America, a state, territory,
18 protectorate, or dependency of the United States of America, a county,
19 municipality or subdivision thereof, any public agency or department
20 thereof, or any public employer, which requires and bears the signature
21 and photograph of the person to whom it is issued.

22 § 5. The general business law is amended by adding a new section 63-b
23 to read as follows:

24 § 63-b. Prohibition on sale of certain items. 1. Notwithstanding any
25 provision of law, rule or regulation to the contrary, it shall be unlaw-
26 ful to sell, offer for sale, or purchase as junk, metal that: (a) is
27 marked with the name, logo, or initials of a critical infrastructure
28 provider, as such term is defined in subdivision three of this section;
29 (b) has been clearly altered for the purpose of removing, concealing, or
30 obliterating such name, logo, or initials through burning or cutting of
31 wire sheathing or other means, unless such seller can demonstrate proof
32 of ownership; or (c) is a wire or cable of a type exclusively used by
33 communications and electrical utilities.

34 2. This section shall not apply to the sale, offer for sale, or
35 purchase as junk, of such items by a duly authorized employee or repre-
36 sentative of a critical infrastructure provider acting in their official
37 capacity.

38 3. For purposes of this section, a "critical infrastructure provider"
39 shall mean a utility company as defined in subdivision twenty-three of
40 section two of the public service law, an electric plant as defined in
41 subdivision twelve of section two of the public service law, a cooper-
42 ative as such term is defined in section two of the rural electric coop-
43 erative law, a cable television company as defined in subdivision one of
44 section two hundred twelve of the public service law, an internet
45 service provider as defined in paragraph (g) of subdivision one of
46 section two hundred twenty-four-c of the public service law, a cellular
47 telephone company, any other person or entity providing voice or data
48 communications services to the public, regardless of its regulatory
49 status under state or federal law, or a public utility authority subject
50 to the provisions of article five of the public authorities law.

51 § 6. Section 64 of the general business law is amended to read as
52 follows:

53 § 64. Penalty. Each violation of this article, either by the junk
54 dealer, the agent or servant thereof, and each false statement made in
55 or on any statement or tag above mentioned shall be a misdemeanor ~~[and]~~.
56 Whenever a junk dealer commits a misdemeanor under this article, the

1 person convicted shall, in addition to other penalties imposed, forfeit
2 ~~[his]~~ their license to do business. ~~[But nothing herein contained shall~~
3 ~~apply to cities of the first class.]~~

4 § 7. Section 69-e of the general business law, as added by chapter 431
5 of the laws of 1976, is amended to read as follows:

6 § 69-e. Definitions. For the purposes of this article:

7 1. "Scrap metal processing facility" shall mean an establishment
8 engaged primarily in the purchase, processing and shipment of ferrous
9 and/or non-ferrous scrap, the end product of which is the production of
10 raw material for remelting purposes for steel mills, ~~[foundaries]~~ found-
11 ries, smelters, refiners, and similar users.

12 2. "Scrap processor" shall mean any person, association, partnership
13 or corporation operating and maintaining a "scrap metal processing
14 facility".

15 3. "Government issued identification" means any current and valid
16 official form of identification issued by the government of the United
17 States of America, a state, territory, protectorate, or dependency of
18 the United States of America, a county, municipality or subdivision
19 thereof, any public agency or department thereof, or any public employ-
20 er, which requires and bears the signature and photograph of the person
21 to whom it is issued.

22 § 8. Section 69-g of the general business law, as amended by chapter
23 302 of the laws of 2007, is amended to read as follows:

24 § 69-g. Records. 1. Such scrap processor shall record (i) each
25 purchase of any pig or pigs of metal, bronze or brass castings or parts
26 thereof, sprues or gates or parts thereof, ~~[utility]~~ copper wire, cable
27 or tubing or brass car journals, or of metal beer kegs, and (ii) each
28 purchase of iron, steel and/or nonferrous scrap for a price of fifty
29 dollars or more, and preserve such record for a period of three years~~;~~
30 ~~which record shall show the date of purchase, name of seller, his]~~.

31 2. The record required by subdivision one of this section shall
32 include a statement subscribed by the seller setting forth (i) the date
33 of the purchase and the type and quantity of material purchased, (ii)
34 when, where, and from whom the seller obtained such property, or other
35 proof of authorization to sell such items, for sales of critical infras-
36 tructure scrap not excluded by section sixty-nine-h of this article,
37 (iii) the seller's identity as verified by a government issued identifi-
38 cation card, (iv) the seller's residence address by street, number,
39 city, village or town, and (v) the driver's license number or similar
40 information from another form of a government issued [photographic]
41 identification card, if any, of such person[, or by such description as
42 will reasonably locate the seller, the type and quantity of such
43 purchase; and the scrap processor shall cause such record to be signed
44 by the seller or his agent. It shall be unlawful for any seller to
45 refuse to furnish such information or to furnish incorrect or incomplete
46 information].

47 3. Such scrap processor shall also make and retain a copy of the
48 government issued photographic identification card used to verify the
49 identity of the person from whom the scrap metal was purchased and shall
50 retain this copy in a separate book, register or electronic archive for
51 two years from the date of purchase.

52 ~~[2-]~~ 4. Such records shall be available for inspection by the police
53 department of the state or the municipality in which the establishment
54 is located.

1 § 9. Section 69-h of the general business law, as added by chapter 431
2 of the laws of 1976, is renumbered section 69-i and is amended to read
3 as follows:

4 § 69-i. Penalty. 1. Each violation of this article by a scrap process-
5 or shall be a violation subject to a fine of not more than two hundred
6 dollars, unless such violation shall be wilful, in which event it shall
7 be a misdemeanor except, however, the scrap processor shall not be
8 liable for any violation of this article by a seller, [~~his~~] their agent,
9 or a purported seller or agent.

10 2. [~~Each violation of this article by a seller or his agent shall be~~
11 ~~a~~] Whenever a scrap processor commits a misdemeanor under this article,
12 the person convicted shall, in addition to other penalties imposed,
13 forfeit their license to do business.

14 § 10. The general business law is amended by adding a new section 69-h
15 to read as follows:

16 § 69-h. Prohibition on sale of certain items. 1. Notwithstanding any
17 provision of law, rule or regulation to the contrary, it shall be unlaw-
18 ful to sell, offer for sale, or purchase as scrap, metal that: (i) is
19 marked with the name, logo, or initials of a critical infrastructure
20 provider, as such term is defined in subdivision one of section 145.15
21 of the penal law; (ii) has been clearly altered for the purpose of
22 removing, concealing, or obliterating such name, logo, or initials
23 through burning or cutting of wire sheathing or other means, unless such
24 seller can demonstrate proof of ownership; or (iii) is a wire or cable
25 of a type exclusively used by critical infrastructure providers.

26 2. This section shall not apply to the sale, offer for sale, or
27 purchase as scrap, of such items by a duly authorized employee or repre-
28 sentative of a critical infrastructure provider acting in their official
29 capacity.

30 § 11. This act shall take effect on the ninetieth day after it shall
31 have become a law.